

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
CHRISTOPHER BROWNE,

Plaintiff,

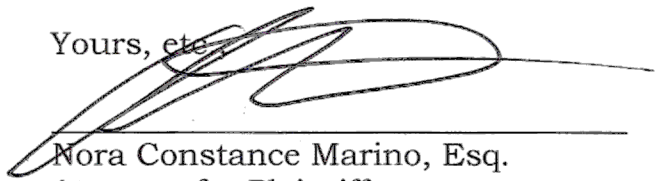
- against -

THE CITY OF NEW YORK, the NEW YORK CITY
POLICE DEPARTMENT, P.O. TALAVERA P.O.
AHMED P.O. JUSINO, P.O. HOANG, and JOHN
DOES 1-10, agents of the defendants, names
being fictitious as their true identifies are
unknown at this time,Defendants.
-----X**To the above named Defendant(s):**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, of if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney(s) within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Nassau County, New York
March 28, 2021

Yours, etc.



Nora Constance Marino, Esq.
Attorney for Plaintiff
175 East Shore Road, Suite 230
Great Neck, New York 11023
516.829.8399
File No.: 1668Service to:
See next page:

CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
One Centre Street
Room 1200
New York, NY 10007-2341

CITY OF NEW YORK
LAW DEPARTMENT
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

P.O. TALAVERA, P.O. AHMED, P.O. JUSINO, P.O. HOANG

108th Precinct
5-47 50th Ave.,
Long Island City, NY, 11101

P.O. JOHN DOES (1-10)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
CHRISTOPHER BROWNE,

Plaintiff,

Index No.:

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, the NEW YORK CITY
POLICE DEPARTMENT, P.O. TALAVERA,
P.O. AHMED, P.O. JUSINO, P.O. HOANG, and
JOHN DOES 1-10, agents of the defendants,
names being fictitious as their true identifies are
unknown at this time,

Defendants.

-----X

Plaintiffs, by their attorney, NORA CONSTANCE MARINO, ESQ.
complaining of the Defendants herein, respectfully show this Court, and allege
as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff CHRISTOPHER
BROWNE ("BROWNE") was and still is a resident of the County of Queens, State
of New York.

2. That at all times hereinafter mentioned, defendant CITY OF NEW
YORK ("CITY") was and still is a municipal corporation, duly organized and
existing under and by virtue of the law of the State of New York.

3. That at all times hereinafter mentioned, defendant NEW YORK CITY
POLICE DEPARTMENT ("NYPD") was and still is a municipal corporation and/or

municipal police department, duly organized and existing under and by virtue of the law of the State of New York.

4. That at all times hereinafter mentioned defendant P.O. TALAVERA ("TALAVERA") was an agent, servant, and/or employee of defendants City and NYPD; was a member of the NYPD; and was acting for, upon, and in course of and in furtherance of the business of his employers and within the scope of his employment for defendants City and NYPD.

5. That at all times hereinafter mentioned defendant P.O. AHMED ("AHMED") was an agent, servant, and/or employee of defendants City and NYPD; was a member of the NYPD; and was acting for, upon, and in course of and in furtherance of the business of his employers and within the scope of his employment for defendants City and NYPD.

6. That at all times hereinafter mentioned defendant P.O. JUSINO ("JUSINO") was an agent, servant, and/or employee of defendants City and NYPD; was a member of the NYPD; and was acting for, upon, and in course of and in furtherance of the business of his employers and within the scope of his employment for defendants City and NYPD.

7. That at all times hereinafter mentioned defendant P.O. HOANG ("HOANG") was an agent, servant, and/or employee of defendants City and NYPD; was a member of the NYPD; and was acting for, upon, and in course of and in furtherance of the business of his employers and within the scope of his employment for defendants City and NYPD.

8. That at all times hereinafter mentioned, defendants John Does 1-10, names being fictitious as names are unknown at this time, were agents, servants, and/or employees of defendants City and NYPD; were members of the NYPD; and were acting for, upon, and in course of and in furtherance of the business of their employers and within the scope of their employment for defendants City and NYPD.

9. Talavera, Ahmed, Jusino, Hoang, and John Does are collectively referred to as “defendant officers”.

10. That all times hereinafter mentioned defendants City and NYPD employed police officers and jailors and others hereafter mentioned in this complaint.

11. That at all times hereinafter mentioned, defendants City and NYPD owned, maintained, supervised, managed, operated, inspected and controlled the various jails, police, facilities, police stations, police precincts, police equipment, police vehicles, all hereinafter mentioned in the complaint.

12. That at all times hereinafter mentioned, all of the actions of the officers allege herein were done within the scope and course of their employment with defendants City and NYPD and under color of the state law.

13. That prior to the commencement of this action, and within ninety (90) days after the happening of the incident herein, plaintiff herein served a Notice of Claim in writing upon the defendants THE CITY OF NEW YORK.

14. That a 50-H hearing was held for plaintiff.

15. That this action is commenced within one (1) year and ninety (90) days of the date when the incident occurred to the plaintiff.

FACTS

16. Plaintiffs repeat, reiterate, and reallege all of the allegations set forth above.

17. On January 4, 2020, at approximately between 6:30 pm and 7:15 pm, plaintiff was at a train yard located in Long Island City, Queens, specifically, a train yard located behind what used to be a Fresh Direct warehouse located at 2330 Borden Avenue, Queens, New York (see Google satellite map, attached) with another individual.

18. Plaintiff and the other individual were at this location for approximately five minutes, when approximately two individuals came running from the easterly direction, and approximately three individuals came running from the westerly direction (who plaintiff now knows were plain clothes police officers) (hereinafter, referred to as the "officers" or "defendant officers"). None of the individuals identified themselves as police officers, or, if they did, they did not do so sufficiently as to cause plaintiff to actually hear them.

19. The officers apprehended plaintiff; the other individual left the scene. When the officers first approached plaintiff, plaintiff was fully cooperative; he placed his hands in plain sight, and then voluntarily placed his hands behind his back in anticipation of being handcuffed, and fully cooperated with directives

and instructions from the officers.

20. There was at least one cuff locked on at least one of plaintiff's wrists, and the second cuff had been placed on plaintiff's wrist. Plaintiff was not resisting or failing to obey in any manner. Despite plaintiff's cooperation and despite the fact that he posed no threat, physical or otherwise, one of the officers, believed to be Talavera, ran at plaintiff, full speed, and while cursing at plaintiff, tackled plaintiff to the ground, grinding plaintiff's face into the gravel ground, punched, kneed, kicked, and stomped on plaintiff's body. Talavera further picked up plaintiff, from the ground, by the handcuffed wrists and drove plaintiff into the ground, and then threw plaintiff into the nearby building.

21. Plaintiff was a victim of excessive force and police brutality, based on these aforementioned acts, among others.

22. Plaintiff was placed in an unmarked police car and taken to the 108 Precinct in Long Island City, where plaintiff was processed. From there, he was taken to Central Booking where he spent the night. The next day, plaintiff was seen by a judge and released.

23. Plaintiff was improperly charged with criminal offenses of which he did not commit; upon information and belief, these improper, false, and manufactured charges were charged upon plaintiff strictly due to malice.

24. Plaintiff's First Amendment and Fourth Amendment rights, due process rights, and other constitutional rights, were violated and not honored; the officers involved engaged in excessive force, causing serious physical and

personal injuries to the plaintiff, who was wrongfully detained, arrested, frisked, searched, assaulted, touched, battered, and verbally abused without justification, authorization, provocation or cause by the respondents herein, who were acting in the scope of their employment and in furtherance of the business of the CITY OF NEW YORK AND THE NYPD.

25. That the defendants acted with a knowing, willful, wanton, malicious, gross, reckless, unlawful, unreasonable and flagrant disregard of plaintiffs' rights, privileges, welfare and well-being and were guilty of egregious and gross misconduct towards them.

26. That all of the foregoing occurred without any fault or provocation of the part of the plaintiff.

27. The direct and proximate results of the defendants' acts are that plaintiffs suffered severe and permanent injuries of a physical and psychological nature.

28. That defendant violated plaintiff's first, fourth, fifth, and fourteenth amendments of the United States Constitution and the New York State Constitution, and New York State law, among other things.

FIRST CAUSE OF ACTION
FALSE ARREST- STATE AND FEDERAL

29. Plaintiffs repeats, reiterates, and realleges all of the allegations set forth above.

30. Defendants falsely arrested and deprived plaintiffs of his liberty,

freedom, and constitutional rights, despite the fact that plaintiff had not committed a crime or violation.

31. That the defendant officers arrested plaintiff despite the fact that they knew that the no crimes or violations were committed and that there was no probable cause or justification for such an arrest and/or detention.

32. That at all times, the officers acted within the scope of their employment of defendants NYPD and under the authority of color of state law as police officers.

33. The aforescribed constitutional violations are all actionable under and pursuant to New York State Law, the New York State and Federal Constitution.

34. Although the defendants knew that detaining and arresting plaintiff when they had no right to do so, in violation of plaintiff's constitutional rights, the defendants criminally processed the plaintiff, generating misleading and false accusatory instruments in order to lay charges against plaintiff, even though defendants knew or had reason to know that they were making an illegal arrest and/or false arrest.

35. The direct and proximate results of the defendants' acts are that plaintiffs suffered severe and permanent injuries of a physical and psychological nature.

SECOND CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING, SUPERVISION, AND
RETENTION UNDER NEW YORK STATE LAW

36. Plaintiff repeats, reiterates and realleges all of the allegations set forth above.

37. Defendant CITY and NYPD negligently hired, trained, supervised, and retained the defendant officers; Defendant CITY and NYPD were careless and reckless in the hiring, training, supervision, overseeing, and retention of Defendant officers.

38. As a result of this negligent hiring, training, supervision, overseeing, and retention, plaintiff has suffered and continues to suffer damages, constitutional violations, as well as other damages.

THIRD CAUSE OF ACTION
MONELL CLAIM PURSUANT TO 42 U.S.C §1983, 1985, 1986

39. Plaintiff repeats, reiterates and realleges each and every allegation contained herein as if fully set forth at length herein.

40. Defendants CITY, NYPD, in their unconstitutional actions as set forth above, and all defendants, in their individual and official capacities, and all defendants and their agents and employees of CITY, NYPD have developed and engaged in repeated practices, procedures, policies, and customs exhibiting deliberate indifference to the constitutional rights of individuals situated as plaintiff, and plaintiff herein.

41. It was the practices, procedures, policies, and customs of defendants to improperly deprive the plaintiff of his constitutional rights, and/or to enter into a conspiracy to deprive plaintiff of his constitutional rights.

42. CITY, NYPD, on their own, not only failed to prevent constitutional violations, but instead, has used its power, management, operation, and control to aid and abet in constitutional violations, and/or conceal constitutional violations, and/or cover-up constitutional violations, and/or allow and permit constitutional violations; and to control, manipulate and inflict harm on civilians and/or parolees, or those who are otherwise being targeted by people of power within the CITY, NYPD.

43. All of the acts and omissions by the individual defendants, described above were carried out pursuant to overlapping policies and practices of the CITY, NYPD, which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of defendants CITY, NYPD.

44. Defendants CITY, NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts as described herein, and/or failed to prevent or stop those acts and/or allowed those acts to continue.

45. Defendants engaged in the unconstitutional acts as described herein, notwithstanding their knowledge that said acts would jeopardize

plaintiff's liberty, well-being, safety and constitutional rights.

46. Defendants CITY, NYPD, have grossly failed to train and adequately supervise its personnel, agents, and/or employees.

47. All of the acts and omissions by the individual defendants, described above were carried out pursuant to overlapping policies, patterns, and practices of the CITY, NYPD, which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of defendant CITY, NYPD.

48. Defendant CITY, NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

49. Defendants detained, arrested, falsely searched, prosecuted, assaulted, battered, and victimized plaintiff in the absence of any evidence of probable cause or reasonableness to do so, notwithstanding their knowledge that said actions would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

50. Defendant CITY, NYPD, has grossly failed to train and adequately supervise its police officers in the fundamental law of use of reasonable detention, search, arrest, and/or prosecution.

51. The direct and proximate results of the defendants' acts are that plaintiff suffered severe and permanent injuries of a physical and psychological

nature.

FOURTH CAUSE OF ACTION
MUNICIPAL AND/OR GOVERNMENTAL LIABILITY

52. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

53. That defendant NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid detention, incarceration, violation of constitutional rights, and permanent psychological injuries to the plaintiffs; and were otherwise reckless, careless, and negligent.

54. That as a result of the above referenced negligence; Plaintiffs were caused to sustain damages and their constitutional rights were violated.

FIFTH CAUSE OF ACTION
EXCESSIVE FORCE

55. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

56. Plaintiff did not resist the orders during the above described incident and did not take any actions necessitating the use of excessive physical force by defendants.

57. As a direct and proximate result of the unlawful excessive force used against plaintiff by defendants deprived plaintiff of his Constitutional rights in violation of the Fourth, Eighth and Fourteenth Amendments of the Constitution and are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

58. Defendant officers used excessive force against plaintiff with knowledge that plaintiff did not commit a crime and that the arrest and force used to effectuate the arrest was excessive, unnecessary and without cause or grounds therefore.

SIXTH CAUSE OF ACTION:
ASSAULT

59. Plaintiffs repeats, reiterates and re-alleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

60. That the aforesaid occurrence and resulting injuries to plaintiffs were due to the willful, wanton, reckless and/or malicious conduct of the defendant officers.

61. That on the aforementioned date at the subject location, plaintiff was, without cause or provocation, maliciously and intentionally assaulted by defendant officers, causing serious personal injury, economic, and non economic damages to plaintiff.

62. That defendant officers did intentionally attempt or threaten to inflict injury on plaintiff, with an apparent ability to cause the harm, and that

said actions created a reasonable apprehension of bodily harm or offensive contact in plaintiff.

63. As a result of defendant officer's assault, plaintiff was injured and suffered, and continues to suffer, damages.

SEVENTH CAUSE OF ACTION
BATTERY

64. Plaintiffs repeats, reiterates and re-alleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

65. That the aforesaid occurrence and resulting injuries to plaintiff was due to the willful, wanton, reckless and/or malicious conduct of the defendant officers.

66. That the defendant officers without cause or provocation, battered plaintiff, causing injury and damages, with an utter indifference to the safety of others and specifically the safety of plaintiff.

67. That the defendant officer's intentional acts without the plaintiffs' consent, caused injuries and damages to the plaintiffs.

68. As a result of defendant officer's battery, plaintiff was injured and suffered, and continue to suffer, damages.

EIGHTH CAUSE OF ACTION
MALICIOUS PROSECUTION – STATE AND FEDERAL

69. Plaintiff repeats, reiterates and realleges all of the allegations set forth above.

70. That one of or more than one of the defendant officers prepared formal accusatory instruments, with the knowledge that no crime or violation had occurred with respect to the referenced accusatory instrument.

71. That one of or more than one of the defendant officers prepared and filed charges against plaintiffs with malice and the intent of depriving plaintiff of his liberty and right to not have their person seized knowing they had no cause or grounds to do so.

72. That one of or more than one of the Defendant officers prepared and filed these charges against Plaintiffs with the intent to deprive plaintiff of his constitutional rights.

73. That defendant CITY and NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid pain and suffering, defamation, incarceration and permanent psychological injuries to the plaintiffs; and were otherwise reckless, careless and negligent.

NINTH CAUSE OF ACTION
ABUSE OF PROCESS

74. Plaintiffs repeats, reiterates, and realleges all of the allegations set forth above.

75. Without plaintiff's consent, one or more of the defendant officers harmfully and offensively touched Plaintiffs by grabbing them, restraining them, handcuffing them, and unlawfully and unconstitutionally deprived the plaintiffs of their liberty and freedom.

76. That one or more of the defendant officers threatened plaintiff without justification, provocation or cause.

77. The defendants abused their authority and abused their position; Defendants abused and violated the public trust and in particular the trust of plaintiff. Defendants had no right under the laws of the land to detain, arrest, harass, incarcerate, or prosecute the plaintiffs, yet they chose to regardless. The defendant officers who did not detain, arrest, harass, incarcerate, or prosecute the Plaintiff, should there be any, are liable to plaintiff for their failure to protect and intervene, and a violation of their duty to intervene, safeguard, and protect the Plaintiff.

TENTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

78. Plaintiffs repeats, reiterates and re-alleges each and every allegation contained in the paragraphs set forth above, with the same force and

effect as if more fully set forth herein.

79. That defendants herein had a duty of care to the plaintiff; that said duty was breached; that said breach resulted directly in emotional harm.

80. That defendant intentional actions go beyond all possible bound of decency, and is regarded as atrocious and utterly intolerable in a civilized community.

81. That defendant's conduct was extreme and outrageous.

82. That defendants acted intentionally and recklessly, caused severe emotional distress and mental trauma to the plaintiff; engaged in extreme and outrageous conduct; intentionally and recklessly caused, or intentionally and recklessly disregarded a substantial probability of causing, severe emotional distress; and there lies a causal connection between the conduct and injury; and resulting severe emotional distress.

83. That the acts of defendants described herein constitute an intentional infliction of emotional distress against the plaintiff, and the plaintiff has suffered damages pursuant thereto, and will continue to suffer same in the future.

84. As a result of defendant's actions, plaintiff was injured and suffered, and continues to suffer, emotional and other damages.

85. That defendants herein had a duty of care to the plaintiff; that said duty was breached; that said breach resulted directly in emotional harm.

86. That defendant's intentional actions go beyond all possible bound

of decency, and are regarded as atrocious and utterly intolerable in a civilized community.

87. That defendant's conduct was extreme and outrageous.

ELEVENTH CAUSE OF ACTION
NEGLIGENCE AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

88. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

89. That defendants herein had a duty of care to the plaintiff; that said duty was breached; that said breach resulted directly in emotional harm.

90. That defendant's negligent actions go beyond all possible bounds of decency, and are regarded as atrocious and utterly intolerable in a civilized community.

91. That defendant's conduct placed plaintiff in reasonable fear of immediate personal injury, which caused emotional distress, which manifested in a physical way.

92. That defendant's negligent actions were extreme and outrageous.

93. That defendants, through extreme, outrageous, and negligent behavior, caused severe emotional distress and mental trauma to the plaintiff; that defendants engaged in extreme and outrageous conduct; negligently and recklessly causing, or negligently and recklessly disregarding a substantial

probability of causing, severe emotional distress; and there lies a causal connection between the conduct and injury; and resulting severe emotional distress.

94. That the acts of defendants described herein constitute a negligent infliction of emotional distress against the plaintiff, and the plaintiff has suffered damages pursuant thereto, and will continue to suffer same in the future.

95. As a result of defendant's actions, plaintiff was injured and suffered, and continues to suffer, emotional and other damages.

96. That defendants herein had a duty of care to the plaintiff; that said duty was breached; that said breach resulted directly in emotional harm.

97. That defendant's negligent actions go beyond all possible bound of decency, and are regarded as atrocious and utterly intolerable in a civilized community.

98. That defendant's conduct placed plaintiff in reasonable fear of immediate personal injury, which caused emotional distress, which manifested in a physical way.

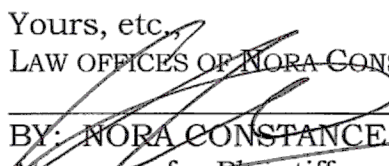
99. That defendant's negligent actions were extreme and outrageous.

As a result of defendants' actions set forth herein, plaintiff suffered damages.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory, economic, punitive, and other damages for his pain and suffering, loss of enjoyment of life, economic loss, and other losses and damages, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, costs, and disbursements.

Dated: March 28, 2021
Nassau County, NY

Yours, etc.,
LAW OFFICES OF NORA CONSTANCE MARINO

BY:  NORA CONSTANCE MARINO, ESQ.

Attorneys for Plaintiffs

175 East Shore Road, Suite 230

Great Neck, NY 11023

516-829-8399

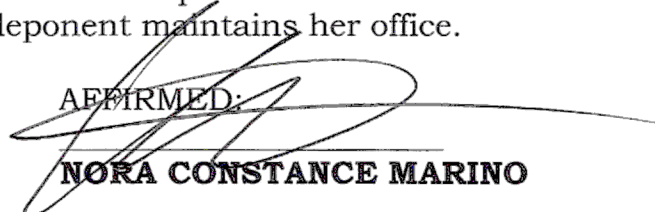
nora@marinojustice.com

ATTORNEY VERIFICATION

STATE OF NEW YORK) ss.:
COUNTY OF NASSAU)

NORA CONSTANCE MARINO, an attorney duly licensed to practice law, affirms under penalties of perjury, that I am the attorney of record for plaintiffs in the within action; that I have read the foregoing **COMPLAINT** and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe it to be true. The reason this verification is made by me and not by plaintiffs named herein, is that the plaintiffs resides in a different county than that which your deponent maintains her office.

DATED: March 28, 2021
Nassau County, NY

 AFFIRMED:

NORA CONSTANCE MARINO

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

CHRISTOPHER BROWN,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, et al.,

Defendant(s).

SUMMONS AND COMPLAINT

**Law Offices Of
NORA CONSTANCE MARINO**
Attorney for Plaintiff
Office and Post Office Address, Telephone
175 East Shore Road
Great Neck, New York 11023
PHONE: 516.829.8399
FAX: 516.829.4699

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: _____ 20__

Nora Constance Marino

To :

*Service of a copy of the within
is hereby admitted.*

Dated: _____ 20__

Attorney(s) for:

PLEASE TAKE NOTICE :

☐ NOTICE that the within is a (certified) true copy of a

OF ENTRY: duly entered in the office of the clerk of the within named court on _____ 20__

☐ NOTICE OF that an order of which the within is a true copy will be presented for settlement to the

SETTLEMENT: HON.

One of the judges of the within named Court, at
22 of 22